

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 2273 of 2013

Mostafa Kamal

----- Pre-emptee-petitioner

=Versus=

Miss Sarmin Akter and others.

----- Pre-emptor-opposite-parties.

Mr. Md. Shahidul Islam with

Mr. Mohammad Riaz Hossain, Advocates

----- For the petitioner

Mr. Md. Mostafa with

Ms. Sharmin Akter, Advocates,

----- For the opposite-party No.1.

Heard and Judgment on 30.03.2017

At the instance of the present pre-emptee-petitioner, Mostafa Kamal, this Rule has been issued calling upon the opposite-party No.1 to show cause as to why the impugned judgment and order dated 17.07.2013 passed by the learned Jananirapatta Bignakari Aparadh Daman Tribunal and District Judge, Special District Judge Court, Barisal, in Miscellaneous Appeal No.75 of 2011, reversing those dated 30.06.2011, passed by the learned Senior Assistant Judge, Sadar, Barisal, in Miscellaneous Case No.51 of 2008, should not be set aside.

At the midst of hearing of this Rule, an application for compromise has been filed by both the present pre-emptee-petitioner and

the pre-emptor-opposite-party No.1 for settling the matter of disputes between the parties out of the Court by way of executing a joint compromise agreement (আ-পাষণামা) dated 23.03.2017 which has been notarized by the Notary Public Mr. Md. Zakir Hossain, Advocate, Notary Public, whole of Bangladesh, B.S.I.C, Road, Barisal (Annexure-X). The present pre-emptor-opposite-party No.1 also executed an undertaking (অঙ্গীকারনামা) dated 23.03.2017 stating that she would not have any further claim from the present-pre-emptee-petitioner in future as the parties are satisfied with the terms and condition of the compromise agreement.

Mr. Md. Shahidul Islam, the learned Advocate appearing for the present petitioner and Mr. Md. Mostafa, the learned Advocate appearing for the pre-emptor-opposite-party No.1 jointly submit that both the parties have settled the matter out of Court and the pre-emptee-petitioner would not have any further claim under section 24 of the Non-Agricultural and Tenancy Act, 1949, therefore, the judgment and order passed by the appellate Court below in the Miscellaneous Appeal No.75 of 2011 allowing the appeal become inoperative and the judgment and order passed by the learned Senior Assistant Judge, in Miscellaneous Case No.51 of 2008 becomes valid and operative.

Considering the above submissions of the learned Advocates appearing for the respective parties and considering the revisional application filed under section 115(1) of the Code of Civil Procedure, in particular, the impugned judgment and order dated 17.07.2013 and also considering the lower Court records, it appears to me that the present pre-emptor-opposite-parties filed the Miscellaneous Case No.51 of 2008 as a pre-emptor under the provision of section 24 of the Non-Agricultural and Tenancy Act, 1949, which was dismissed but on appeal by the pre-emptor the learned appellate Court allowed the appeal. During the pendency of this revisional application and the Rule thereupon both the parties have settled their disputes out of the Court by executing an agreement for compromise on 23.03.2017 with certain determination and condition which have been described in the said agreement, in particular, the agreement contains the following important terms :-

“১ম পক্ষ তাহাদের দলীল মুলে ক্রয়কৃত ৫ শতাংশ ভূমি যেভা-ব আ-ছ সেই অবস্থায় ভোগ দখ-ল বিদ্যমান থাকিয়া দ্বিতীয় প-ক্ষর সা-থ সকল ভূ-লর অবসান পূর্বক সৌহার্দ্যপূর্ণ পরি-ব-শ বসবাস করি-ব। এর পরবর্তী সময়ে এসংক্রান্ত কোন বিষয়ে কোন পক্ষ প্রদত্ত আপোষ মিমাংশার বাহিরে কোন কার্যক্রম করিতে পারিবেনা, যদি কেহ এরূপ কোন কা-জ নি-য়াজিত হয় ত-ব তাহা সর্বাদাল-ত অগ্রাহ্য বলিয়া বি-বচিত হই-ব।

বিজ্ঞ শালিস আদালতের সিদ্ধান্ত মোতাবেক প্রথম পক্ষ জনাব মোস্তাফা কামাল তার নিয়োজিত আমমোক্তার মারফত মোকদমার খরচ বাবদ দ্বিতীয় পক্ষ সারমিন আক্তারকে ৭,০০,০০০/- (সাত লক্ষ) টাকা প্রদান কর-বন। যাহা ইসলামী ব্যাংক বরিশাল শাখায় চলতি হিসাব নং- ৩১৮১ এর বিপরী-ত চেক নং আইডিল্লিউ-০৬৫৮০১৫ এ ৩,০০,০০০/-

(তিন লক্ষ টাকা) এবং চেক নং আইডিল্লিই- ০৬৫৮০১৬ এ ৪,০০,০০০/-
(চার লক্ষ টাকা) প্রদান ক-রন।”

From the above terms and conditions along with other terms and conditions in the said agreement of compromise, I am satisfied that the parties have settled their matter of dispute in the Rule and the present pre-emptor-opposite-party No.1 accepted the claim of the pre-emptee as to the purchased of land measuring 05 decimals appertaining to S.A Dag Nos.4448, 4449 and 4451 in S.A. khatian Nos.356 and 357 Rupatoli Mouja, at present Barisal (previously Bakergonj) for the land measuring 05 decimals.

After considering the above facts and circumstances, it appears to me that the judgment and order passed by the learned appellate Court below allowing the appeal and setting aside the judgment and order passed by the learned trial Court become inoperative, therefore, the judgment in appeal is hereby set aside and the registered sale deed dated 30.07.2008 is hereby declared to be a valid document, as such, I am therefore inclined to interfere with the judgment and order passed by the learned appellate Court below.

Accordingly, I find merit in this Rule.

In the result, the Rule is made absolute as per the compromise agreement (আ-পাষণামা) Annexure-X.

The interim order of stay granted at the time of issuance of the Rule upon the operation of the impugned judgment and order dated 28.07.2013 is hereby recalled and vacated.

The section is directed to communicate the judgment and order to the court concerned and send down the Lower Court's Records at once.